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LINE: 6

25-CIV-04466

MOHAMMAD M KANNA VS. VINDULA RAGHBIR, ET AL

MOHAMMAD M KANNA
VINDULA RAGHBIR

ANDREA DIAZ
STEPHEN E BAUMANN

DEFENDANT DAVID POTTS'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendant David Potts's demurrer to the First Cause of Action for disability harassment in Plaintiff Mohammad M. Kanna's First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

BACKGROUND

This action arises out of Plaintiff's former employment with Defendant Gate Group, Inc. Plaintiff alleges he sustained a work-related head injury on June 26, 2023, when a roll-up door unexpectedly closed and struck him. Plaintiff alleges he reported the incident to several individuals, including Defendant David Potts. (FAC, ¶ 21.)

Plaintiff further alleges he was diagnosed with a concussion, received work restrictions, later remained off work from October 2023 through July 2024, and eventually learned he had sustained cervical-spine injuries from the incident. In December 2024, Plaintiff requested an extension of his leave of absence. Defendants denied the request and terminated his employment on January 8, 2025.

The FAC asserts six causes of action against Gate Group. Only the First Cause of Action for disability harassment under the Fair Employment and Housing Act ("FEHA") is asserted against Potts. Plaintiff alleges that Potts, along with Defendants Vindula Raghbir, Hardev Guru, and Alice Warrick, harassed Plaintiff by contacting him excessively while he was on leave and pressuring him to return to work or perform job duties, even though he was on leave and/or required additional leave as an accommodation. (FAC, ¶ 41.)

PRELIMINARY MATTERS

The moving notice identified the prior department and hearing location. The matter was later reassigned to Department 2. The opposition and reply identify the correct department and hearing time, and the parties appear to have notice of the current hearing. To the extent the earlier notice contained an incorrect department or location, the Court finds no prejudice requiring the demurrer to be dropped from calendar. (See Cal. Rules of Court, rule 3.1110(b)(1).)

Potts has submitted evidence of compliance with Code of Civil Procedure section 430.41. Defense counsel declares that the parties met and conferred by telephone on August 15, 2025, and that, after Plaintiff filed the FAC on August 19, 2025, defense counsel sent a follow-up letter addressing the alleged pleading deficiencies. (Nushwat Decl., ¶¶ 7-10.) The parties did not resolve the issues raised by the demurrer.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the challenged pleading. A demurrer may be sustained where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e); *id.*, §§ 430.30, subd. (a), 430.50, subd. (a).)

For purposes of demurrer, the Court accepts as true all properly pleaded material facts, but not contentions, deductions, or conclusions of law. The Court considers the pleading as a whole and gives it a reasonable interpretation. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304.)

FIRST CAUSE OF ACTION FOR DISABILITY HARASSMENT

A demurrer may be sustained where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

FEHA makes it an unlawful employment practice for an employer or other covered person to harass an employee because of, among other protected characteristics, physical disability, mental disability, or medical condition. (Gov. Code, § 12940, subd. (j)(1).) An employee is personally liable for harassment prohibited by section 12940, subdivision (j), that is perpetrated by that employee, regardless of whether the employer knew or should have known of the conduct and failed to take corrective action. (*Id.*, subd. (j)(3).)

To state a harassment claim under FEHA, Plaintiff must allege facts showing that he was subjected to unwelcome conduct because of his protected status and that the conduct was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 627, citing *Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 279.) The severity of alleged harassment is evaluated from the perspective of a reasonable person in the plaintiff's position and under the totality of the circumstances. (*Bailey, supra*, 16 Cal.5th at p. 629.)

Potts first argues he cannot be held personally liable because the FAC does not adequately allege that he supervised Plaintiff. That argument is not persuasive. The current text of Government Code section 12940, subdivision (j)(3), permits personal liability against an employee who personally perpetrates harassment prohibited by subdivision (j). Plaintiff therefore need not allege that Potts was his supervisor in order to state a harassment claim against Potts individually.

Personnel-management activity, standing alone, generally does not constitute harassment. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645-647; *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 63-65.) However, personnel-management conduct may be considered in assessing harassment when it communicates a hostile

message based on a protected characteristic. (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 709-710.) As pleaded, the FAC does not allege enough facts to show that Defendant Pott's leave-related communications were severe or pervasive harassment, rather than return-to-work or leave-administration communications.

Here, Plaintiff alleges only that Potts and others contacted him excessively while he was on leave and pressured him to return to work or perform job duties. (FAC, ¶ 41.) The FAC does not allege when Potts contacted Plaintiff, how often Potts contacted him, what Potts said, what Potts did, how Potts pressured Plaintiff, whether Potts used any disability-based language, or facts showing that Potts's communications conveyed a hostile message because of Plaintiff's disability or medical condition. Without those facts, the alleged conduct is equally consistent with leave administration, return-to-work communications, or other personnel-management activity. As pleaded, the FAC does not allege facts showing conduct by Potts that was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment.

Accordingly, Potts's demurrer to the First Cause of Action for disability harassment is **SUSTAINED WITH LEAVE TO AMEND**.

DISPOSITION

Defendant David Potts's demurrer to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiff shall file and serve any Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant David Potts shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 7

25-CIV-08949

SARISHAMA MAHARAJ VS. HYUNDAI MOTOR AMERICA

SARISHAMA MAHARAJ
HYUNDAI MOTOR AMERICA

EMILY MAYERS
ALI AMERIPOUR

DEFENDANT HYUNDAI MOTOR AMERICA’S MOTION TO COMPEL BINDING ARBITRATION

TENTATIVE RULING:

For the following reasons, Defendant Hyundai Motor America’s Motion to Compel Binding Arbitration is **GRANTED**.

Defendant Hyundai Motor America moves to compel arbitration under the arbitration provision in the 2022 Owner’s Handbook & Warranty Information (the “Warranty”), not under the Retail Installment Sales Contract (“RISC”).

Code of Civil Procedure section 1281.2 requires the court to order arbitration if it determines that an agreement to arbitrate the controversy exists, unless the moving party has waived the right to compel arbitration, grounds exist for revocation of the agreement, or litigation with a third party creates a risk of conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) Arbitration is a matter of contract; a party may not be compelled to arbitrate a dispute the party did not agree to arbitrate. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; see also *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.)

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn., supra*, 55 Cal.4th at p. 236; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party satisfies its initial burden by producing a copy of the arbitration agreement or by stating its provisions verbatim. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166; Cal. Rules of Court, rule 3.1330.) If the opposing party does not dispute the existence or authenticity of the agreement, the moving party need not present additional evidence to authenticate the agreement. (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Kostandian v. American Honda Motor Co., Inc. (2026) 120 Cal.App.5th 872 is particularly instructive. There, the Court of Appeal held that the manufacturer met its initial burden to establish a warranty-booklet arbitration agreement where it produced the booklet containing the arbitration provision, recited the relevant terms in its moving papers, and the plaintiff did not dispute the existence of an arbitration agreement in the warranty booklet. (*Id.* at pp. 884-885; see also *Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Here, the arbitration agreement under which Defendant seeks to compel arbitration is contained in the Warranty. (Ameripour Decl., ¶ 4, Exh. 2.) Defendant produced a copy of the Warranty and set forth the operative arbitration language under the heading “BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY,” which provides: